

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Buhner	Team: Team # 3	CCRB Case #: 201408177	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/25/2014 1:03 AM	Location of Incident: Eastern Parkway & Utica Avenue	18 Mo. SOL 7/25/2015	Precinct: 77
Date/Time CV Reported Sat, 01/25/2014 1:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/08/2014 1:56 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Latonya Williams	04666	931425	TD 32
2. POM Frederick Gibson	16272	944068	TB DT32

Officer(s)	Allegation	Investigator Recommendation
A . POM Frederick Gibson	Force: PO Frederick Gibson used physical force against § 87(2)(b)	A . Exonerated
B . SGT Latonya Williams	Force: Sgt. Latonya Williams used physical force against § 87(2)(b)	B . Exonerated
C . SGT Latonya Williams	Discourtesy: Sgt. Latonya Williams spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . SGT Latonya Williams	Force: Sgt. Latonya Williams used pepper spray against § 87(2)(b)	D . Exonerated

Case Summary

On January 25, 2014, at approximately 1 a.m. in the Utica Avenue subway station in Brooklyn, § 87(2)(b) jumped the turnstile and did not pay his fare. As § 87(2)(b) attempted to board the 4 train, two officers in plain clothes, Sgt. Latonya Williams and PO Frederick Gibson from TB DT32, instructed him to exit the train. § 87(2)(b) complied, and Sgt. Williams identified herself as a member of the NYPD. PO Gibson told § 87(2)(b) to place his hands behind his back, at which point § 87(2)(b) tried to run away.

PO Gibson caught up to § 87(2)(b) first and made physical contact with him, preventing him from continuing to flee and allegedly causing them both to fall to the ground (**Allegation A**). Sgt. Williams arrived shortly thereafter, and a struggle ensued between the officers and § 87(2)(b) during which physical force was used by Sgt. Williams and PO Gibson (**Allegation B**). § 87(2)(b) alleges that during the struggle, Sgt. Williams stomped on his head six times (**within Allegation B**). During the struggle, Sgt. Williams allegedly uttered various profanities towards § 87(2)(b) (**Allegation C**), after which she deployed her pepper spray, which made contact with § 87(2)(b) face (**Allegation D**). After § 87(2)(b) was pepper sprayed, the officers were able to place him in handcuffs and he was transported to the Precinct stationhouse by a backup unit.

On November 2, 2014, this case was reassigned to the investigator from Investigator Caitlin Schwartz for completion and closure.

Mediation, Civil and Criminal Histories

On February 19, 2015, a notice of claim inquiry was submitted to the New York City Comptroller's office. The result will be added to the case file upon its return. Due to § 87(2)(b) arrest, he was not offered mediation. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl.1B).
- Sgt. Williams has been a member of the NYPD for 12 years, and has had three previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)
- PO Gibson has been a member of the NYPD for eight years, and has had three previous CCRB allegations involving one case with no substantiated allegations. § 87(2)(g)

Potential Issues

- § 87(2)(b) filed this complaint with the Internal Affairs Bureau on the same day as the incident. However, the case was not received by the CCRB until August 8, 2014, approximately seven months after it was initially filed.
- § 87(2)(b) has been incarcerated throughout the duration of the investigation, which resulted in substantial delays in obtaining his medical records. When he provided his initial statement, § 87(2)(b) did not indicate at which hospital he was treated. A letter was sent to his facility requesting this information and was never returned. Therefore, a

subsequent trip to Rikers Island was necessary in order to acquire the pertinent information, which resulted in a delay in sending the subpoena for § 87(2)(b) records.

Police Documents

- A request for § 87(2)(b) arrest photo was negative, and his arrest is sealed (encl. 6I)
- The injuries sustained by § 87(2)(b) are detailed in both PO Gibson and Sgt. Williams' memo books.
- The Line of Duty report indicates that PO Gibson was injured as a result of apprehending § 87(2)(b) (encl. 5F-5O)

Finding and Recommendations

Explanation of Subject Officer Identification

Sgt. Williams and PO Gibson acknowledged their roles in this incident. The roll call from TB DT32 also confirmed that Sgt. Williams and PO Gibson were assigned to the Anti-Crime team on the date of the incident (encl. 5P)

Recommendations

Allegation A – Force: PO Frederick Gibson used physical force against § 87(2)(b)

Allegation B – Force: Sgt. Latonya Williams used physical force against § 87(2)(b)

Allegation D – Force: Sgt. Latonya Williams used pepper spray against § 87(2)(b)

It is undisputed that physical force was used when PO Gibson was attempting to prevent § 87(2)(b) from fleeing the location, as well as when he and Sgt. Williams were struggling with § 87(2)(b) while trying to place him in handcuffs. § 87(2)(b) indicated in his statement that physical force was used against him during both instances, and both officers documented the use of force in their memo books.

It is undisputed § 87(2)(b) attempted to flee after he was told he was being placed under arrest, and as he was doing so, PO Gibson made physical contact with him. This contact prevented § 87(2)(b) from fleeing, as well as caused § 87(2)(b) to fall to the ground. § 87(2)(g)

§ 87(2)(b) acknowledged in his statement that he jumped the turnstile, did not pay his fare, and was stopped on the train platform, where he fled from the officers upon being told to put his hands behind his back. PO Gibson gave chase and caught up to § 87(2)(b) at the bottom of a set of stairs, at which point he grabbed § 87(2)(b) by the right foot, causing him to fall on the ground, face forward (encl.2A-2C).

In his testimony, PO Gibson corroborated the events leading up to the point where he made physical contact with § 87(2)(b). PO Gibson stated that when he caught up to § 87(2)(b) he grabbed him by the back of his clothing, causing both men to fall to the ground. PO Gibson could not recall in what position they fell, but testified that the fall occurred on the platform, was nowhere near any stairs, and that no part of § 87(2)(b) body made contact with any stairs or steps as a result of the fall (encl.3H-3M). Sgt. Williams, who was a short distance behind PO Gibson and § 87(2)(b) when the fall occurred, corroborated PO Gibson's statement in its entirety.

Additionally, Sgt. Williams noted in her memo book that PO Gibson and § 87(2)(b) fell to the ground/platform causing injuries to § 87(2)(b) and PO Gibson (encl. 3A-3G). PO Gibson noted in his memo book that as a result of the fall, he sustained injuries to his right knee and right hand, and was subsequently taken to the hospital and went line of duty for two days (encl. 5F-5O).

After § 87(2)(b) was brought to the ground, it is undisputed that both physical force and pepper spray were used in order to place him in handcuffs. According to PO Gibson's memo book, both physical force and pepper spray were utilized to subdue § 87(2)(b) after he failed to comply with verbal commands. In her memo book, Sgt. Williams concurred, also noting that § 87(2)(b) was kicking and waving his arms, attempting to flee the location, and would not comply with verbal commands to stop resisting. Furthermore she noted that PO Gibson was attempting to hold § 87(2)(b) by his legs, while she was attempting to gain control of his arms and grab his sweater in order to keep him on the ground so he could be placed in handcuffs.

In his testimony, § 87(2)(b) stated that while on the ground, PO Gibson pulled § 87(2)(b) left arm behind his back, and Sgt. Williams placed her foot on his head, near his upper right cheek. He further stated that he was not moving his body and was not resisting in any way. As the officers were attempting to place him in handcuffs, § 87(2)(b) alleges that Sgt. Williams stomped on his head with her foot approximately six times resulting in injuries to his face, and then proceeded to pepper spray him in the face approximately three times.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

In his sworn statement, § 87(2)(b) testified that he believed he received the lacerations from Sgt. Williams stomping on his head. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) In her memo book, Sgt. Williams noted that PO Gibson and § 87(2)(b) fell to the ground/platform, causing injuries to § 87(2)(b) § 87(2)(g). In his entry, PO Gibson stated that during the struggle, he and § 87(2)(b) fell to the ground, at which point § 87(2)(b) sustained lacerations above his right eye. In her sworn statement, Sgt. Williams denied placing her feet on § 87(2)(b) head, or stomping on his head, at any point during the incident, and PO Gibson testified that he did not witness either of those actions occurring at any point during the altercation

Both officers testified that § 87(2)(b) was resisting arrest by flailing and waving his arm and hands, kicking his legs, and refusing to comply with orders to stop resisting. Furthermore, both officers issued multiple commands to § 87(2)(b) to stop resisting, and he did not reply verbally or cease to resist. After issuing numerous commands, Sgt. Williams testified that she then verbally warned § 87(2)(b) that if he did not stop resisting, he was going to be pepper sprayed. § 87(2)(b) did not respond verbally, and did not cease to resist. Therefore, Sgt. Williams discharged one burst of spray within 12-18 inches of § 87(2)(b) which lasted approximately three seconds. After the spray made contact with § 87(2)(b) he stopped resisting and the officers were able to place him in handcuffs.

Patrol Guide Procedure 203-11 mandates that officers may only use the minimum amount of force necessary to overcome a suspect's resistance and effect an arrest (encl.0A-0B). Furthermore, Patrol Guide Procedure 212-95 authorizes officers to use pepper spray when they reasonably believe its use is necessary to protect themselves or others from the unlawful use of force, establish physical control of a subject resisting arrest, and effect said arrest. The pepper spray should be discharged from a distance of three feet, and the use of pepper spray should be considered as a useful alternative to reduce potential injury caused by physical force (encl. 0C-0F).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

Consequently, it is recommended that **Allegations A, B and D** be closed as **exonerated**.

Allegation C – Discourtesy: Sgt. Latonya Williams spoke rudely to § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]. § 87(2)(b) [REDACTED] testified that while they were struggling on the

ground, Sgt. Williams allegedly said to him, “You think you’re fucking slick? Keep your fucking hands behind your back, and stop moving your fucking hands”. However, in his initial complaint, there was no mention of any profanities used by Sgt. Williams during the incident. In her sworn statement, Sgt. Williams denied making the above statements, and denied using any profanity,

§ 87(2)(g) [REDACTED].

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date